

**In the Common Pleas Court
of
Knox County, Ohio**

FILED
KNOX COUNTY
COURT OF COMMON PLEAS
2022 MAR -1 AM 9:12
CHRISTY MILLIGAN STATON
CLERK OF COURTS

**State of Ohio, ex rel,
Dave Yost, Attorney General**

Case No. 20IN06-0149

vs.

**Judge James L. Kimbler,
By Assignment #22JA2185'**

**The Landings Property
Association, Inc, et al**

**Judgment Entry as to Motion for
Summary Judgment of Roger and
Sharon Reed**

Procedural History

This action is brought by the State of Ohio, through the Ohio Department of Natural Resources, to enforce dam safety requirements. Ohio's Dam Safety Law is set forth in R. C. Chapter 1521, and Ohio Adm. Code Chapter 1501:21. Under R.C. Chapter 1521, the Chief of the Ohio Department of Natural Resource's Division of Water Resources, has the statutory authority to regulate dam in Ohio. (See R.C. Section 1521.06 and 1521.062.)

Normally the enforcement of the Dam Safety law will involve the filing of a complaint seeking both a preliminary injunction and a permanent injunction. The preliminary injunction in which the State seeks to have emergency repairs done to lessen risk the catastrophic dam failure and a permanent injunction ordering the person or entities who own the dam in question to repair the dam, and to maintain the dam, so as to avoid dam failure in the future.

In this particular case, however, the State is also seeking a declaratory judgment. This judgment would declare who owns the dam in question so that the appropriate parties can be ordered to repair and maintain the dam. Two of these parties are Roger and Sharon Reed.

The Reeds have filed a motion for summary judgment seeking a declaration from this Court that they are not the owners of the parcel or parcels of land on which the Dam is located, and therefore, cannot be found to be the owners or part-owners of the dam.

In its reply to the motion filed by the Reeds, the State of Ohio states that it is not disputing the motion for summary judgment that the Reeds filed.

Standard of Review on Motions for Summary Judgment

Summary judgment is warranted when there are no genuine issues of material facts, and the moving party is entitled to summary judgment as a matter of law. Under Ohio law “[A] party seeking summary judgment, on the ground that the nonmoving party cannot prove its case, bears the initial burden of informing the trial court on the basis for the motion, and then identifying those portions of the record that demonstrate the absence of a genuine issue of material fact on the essential element(s) of the nonmoving party claim.” *Dresher v. Burt*, 75 Ohio St.3d 280,293 (1996). Once the movant satisfies its burden, the opposing party has a reciprocal burden to present specific evidence on any issue for which that party bears the burden of production at trial. See *State ex rel. Zimmerman v. Tompkins*, 75 Ohio St.3d 447, 449 (1996). Failure to present such evidence warrants summary judgment in favor of the movant. See *Id.* Mere reliance on the pleadings or unsupported allegations is insufficient. *Id.* The adverse party must respond with specific facts showing that there is a genuine issue of material fact; *Beckloff v. Amcor Rigid Plastics USA, LLC*, 6th Dist., Sandusky No. S-16-041, 2017-Ohio-4467.

The nonmoving party receives the benefit of all favorable inferences when evidence is reviewed for the existence of genuine issues of material facts. *Temple v. Wean*, 50 Ohio St.2d at 327,

A trial court should not enter a summary judgment if it appears that a material fact is genuinely disputed, or, if it determines that reasonable minds could draw different conclusions from the undisputed facts. *Ball v. New Era Golf, BT Inc.*, (5th Dist.), 2012-Ohio02125. A fact is "material" if it affects the outcome of the case under the applicable substantive law. See *Ball*, supra.

Undisputed Facts

Because the State of Ohio is not disputing the motion for summary judgment that was filed by the Reeds, this Court finds that the facts as set forth in the memorandum attached to the motion filed by the Reeds to be undisputed.

Those facts, as set forth in the memorandum are as follows:

On November 11, 2021, the State of Ohio, by and through its Attorney General, Dave Yost (the "State"), brought this action against co-Defendants The Landing Property Owners Association Inc.; Crown Hill Condominiums at Mount Vernon Unit-Owners Association; Delano Asset Management, LLC; Stephen Upham III and Stephanie J. Lord; John Michael and Mary Ann Haughton; Melissa L. Frazee Trustee; Wayne E. Dunlop and Virginia L. Dunlop Trustees; Amanda Maldonado; John Michael and Abby DeCosky; and Mullins Bros., Ltd. (the "Potential Dam Owners") in order to "address[] public safety issues relative to the operation of the" Dam. Nov. 15, 2021, Second Amended Complaint for Declaratory and Injunctive Relief, p. 4-5. Specifically, the State alleges that the Potential Dam Owners ignored various notices regarding their obligation to address public safety concerns relating to the Dam. *Id.*

Then, on October 18, 2021, the Court ordered that "all persons who own property contiguous to the property owned by the Landings Property Owners

Association' [be added] as additional necessary parties to this case." Id. alp. 5. In response, Roger and Sharon L. Reed (the "Reeds") were added to this action along with other co-Defendants identified by the State as "Contiguous Property Owners." Id. The State seeks a declaration as to the legal owner(s) of the Dam"; both the Potential Dam Owners and Contiguous Property Owners deny responsibility for and ownership of the Dam. Id.

On June 1, 2018, William A. Hatfield conveyed the property located at 31 Mallard Pointe, Mount Vernon, Ohio 43050 (the "Property") to the Reeds. June 1, 2018 Deed, a copy of which is found on the Knox County Recorder's website, and a true and accurate copy of which is attached to this Motion as Exhibit 3. The Property is comprised of two adjoining parcels with the parcel numbers: 66-09721.043 and 66-09675.166. Id.

In 2009, the Ohio Department of Natural Resources sent Mr. Hatfield a letter confirming that the Property, parcel number 66-09675.166, "does not lie within the extent of the" Dam and "by the definition of the dam, the subject parcel is not part of the dam." Oct. 16, 2009 letter from the Ohio Department of Natural Resources ("ODNR"), a copy of which is attached as Exhibit 2 (emphasis in the original). This is demonstrated by Figure I to the Letter, which shows that parcel number 66-09675.166 is closest to, but well outside of, the "[a]proximate extent" of the Dam. Id. al Figure I. Neither of the parcels fall within the extent of the Dam. Id.

The State admits that, with the exception of some of the handwriting, the 2009 Letter is a true and accurate copy of the letter sent by Mr. Huitger in 2009. Dec. 5, 2022 Plaintiff State of Ohio's Response and Objections to Requests for Admission of Defendant Roger and Sharon Reed, a copy of which is attached as Exhibit 4, Nos. 1-6. In other words, the authenticity of the letter, and the representations made within, is not in dispute. Id. “

**Material Fact in this Litigation: Ownership of the Knox Cattle
Company Dam**

Chapter 1521 of the Ohio Revised Code, entitled Division of Water Resources, is the chapter of the Ohio Revised Code that sets forth the power and jurisdiction of the Ohio Division of Water Resources, which is a division of the Ohio Department of Natural Resources.

Chapter 1521 contains the R.C. Section 1521.062, which is entitled "Inspection of Dams and Levees." That section contains the following in subsections (D) and (E):

(D) In the case of a dam or levee that the chief inspects, the chief shall furnish a report of the inspection to the owner of the dam or levee. With regard to a dam or levee that has been inspected, either by the chief or by a registered professional engineer, and that is the subject of an inspection report prepared or received by the chief, the chief shall inform the owner of any required repairs, maintenance, investigations, and other remedial and operational measures. The chief shall order the owner to perform such repairs, maintenance, investigations, or other remedial or operational measures as the chief considers necessary to safeguard life, health, or property. The order shall permit the owner a reasonable time in which to perform the needed repairs, maintenance, investigations, or other remedial measures, and the cost thereof shall be borne by the owner. All orders of the chief are subject to appeal as provided in Chapter 119. of the Revised Code.

(E) The owner of a dam or levee shall monitor, maintain, and operate the structure and its appurtenances safely in accordance with state rules, terms and conditions of permits, orders, and other requirements issued pursuant to this section or section 1521.06 of the Revised Code. The owner shall fully and promptly notify the division of water resources and other responsible authorities of any condition that threatens the safety of the structure and shall take all necessary actions to safeguard life, health, and property.

The Department of Natural Resources has also enacted sections of the Ohio Administrative Code that pertain to its responsibilities regarding dams that fall under the Department's jurisdiction. That jurisdiction is set forth in subsection (J) which reads as follows:

(J) In accordance with Chapter 119. of the Revised Code, the chief may adopt, and may amend or rescind, rules that do all of the following:

(1) Designate classes of dams for which dam owners must obtain the services of a registered professional engineer to periodically inspect the dams and to prepare reports of the inspections for submittal to the chief;

(2) Establish standards in accordance with which the chief must approve or disapprove registered professional engineers to inspect dams together with procedures governing the approval process;

(3) Establish schedules, standards, and procedures governing periodic inspections and standards and procedures governing the preparation and submittal of inspection reports;

(4) Establish provisions regarding the enforcement of this section and rules adopted under it.

One of the Administrative Rules promulgated by the Department is OAC Rule 1501:21-3-01, which concerns definitions that are to be applied when the Department is enforcing the rules that apply to dams in the Ohio Administrative Code. In particular, the definition of the "Owner" is found in subsection (W) of that Rule, which reads as follows: "(W) "Owner" means those who own, or propose to construct a dam or levee."

In Ohio, ownership of real estate can be conveyed by use of a permanent parcel number in a deed as well as describing the property by metes and bounds. See, for example, *Kirkwood v. FSD Development Corporation*, (8th. Dist.), 2012-Ohio-2922.

In this particular case, the deed that was given to the Reeds by their predecessor in title, The William A. Hatfield, and Barbara J. Hatfield Revocable Living Trust" used both permanent parcel numbers and a metes and bound description to describe the property that was being conveyed.

The fact that the deed given to the Reeds includes a permanent parcel number description as well as a metes and bounds description is important because in July of 2009, the Department of Natural Resources, Division of Soil and Water Resources, sent Mr. Hatfield, who was apparently the Trustee of the Revocable Living Trust established by Mr. Hatfield and Barbara Hatfield, a letter in which a Mr. Jim Huitger, who was at that time a Construction Specialist for the Division, stated that

“In accordance with our phone conversation, please be advised that a parcel owned by you (66- 09675.166) does not lie within the extent of the Knox Cattle Company Dam as identified in Figure I from our previous correspondences dated October 14, 2009. Therefore, by the definition of a dam, the subject parcel is not a part of the dam as originally identified.”

The State of Ohio in its answers to requests for admissions served on the State by Roger and Sharon Reed admits that Mr. Huitger was a person who was authorized to send the letter, which is an admission and is therefore, not hearsay. See Evid. R. 801 (D).

As the exhibits attached to the Reeds' motion for summary judgment make clear, the lots in the development in which both the Knox Cattle Company Dam and the real estate owned by the Reeds, are described by the Knox County Auditor by permanent parcel numbers. This is also shown by Mr. Huitger's letter which included a photograph taken from the website of the Knox County Auditor in which permanent parcel numbers are used to show the extent of the Knox Cattle Company Dam, which is the subject of this litigation.

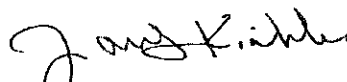
In essence, the Reeds argue in their motion for summary judgment that the State has admitted that the dam is not located on the permanent parcel number that is described in the deed that they obtained from the Hatfield Revocable Living Trust.

Another way of putting the above proposition is that if the Reeds don't have title to the real estate that the dam is located on, as shown by the permanent parcel numbers contained in the Knox County Records, then they can't be found to "own" the dam as that term is used in R.C. 1521.062, or the Ohio Administrative Code Regulations enacted pursuant to R.C. Chapter 1521.

There is nothing in the Ohio Revised Code in Chapter 1521 or in the Ohio Administrative Code sections that would indicate to this Court that the word "Owns" means anyone or anything other than the person or entity who has title to the land on which the Knox Cattle Company Dam is located. Nor has the State made any argument that the owner of the dam for purposes of repair and maintenance can be anyone or anything other than the person or entity who has title to the land on which the dam is located.

Therefore, this Court finds that the motion of Roger and Sharon Reed is well taken and hereby finds and declares that Roger and Sharon Reed are not the owners of the Knox Cattle Company Dam which is the subject of this lawsuit. Any costs in this action shall not be taxed to Roger and Sharon Reed.

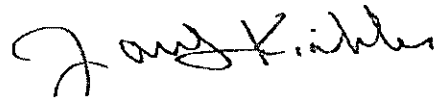
So Ordered, Adjudged, and Decreed.



Judge James L. Kimbler

Directions to the Knox County Clerk of Courts

Pursuant to Civ. R. 58, the Clerk of Courts for Knox County is hereby directed to serve upon all parties not in default for failure to appear notice of this judgment and its date of entry on the Court's journal.



Judge James L. Kimbler

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